



MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Member of the City Council, City of Cheyenne

FROM: Erin Gates, PE, Staff Engineer 

DATE: March 5, 2026

SUBJECT: Drainage Easement Agreement between CBH Properties and the City of Cheyenne

Please find attached a Drainage Easement Agreement between CBH Properties and the City of Cheyenne for a recently constructed stormwater detention pond associated with the redevelopment in a portion of Tract 23, Sunnyside Addition, Second Filing, now addressed as 3906 E. Pershing Boulevard.

The property owner will be responsible for the maintenance of the detention pond so that it functions as designed and constructed. The City is granted access to ensure maintenance is completed and for any emergency maintenance deemed necessary.

There are no financial implications associated with this Drainage Easement Agreement. Your approval of this agreement is respectfully requested.

DRAINAGE EASEMENT AGREEMENT

KNOW ALL MEN BY THESE PRESENTS that, CBH PROPERTIES CHEYENNE, LLC, a Wyoming limited liability company ("Grantor"), whose address is 17725 Katy Freeway, Suite 200, Houston, TX 77094, in consideration of the sum of Ten Dollars (\$10.00) and other good and valuable consideration, receipt and sufficiency of which is hereby acknowledged by and between the parties, does hereby grant to the City of Cheyenne, a Wyoming municipal corporation ("City"), whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, and to its successors and assigns, a non-exclusive drainage easement, legally described on **Exhibit A**, attached hereto and incorporated herein.

RECITALS

WHEREAS, Grantor is the lawful owner of certain real property located in Laramie County, Wyoming, more particularly described and depicted on Exhibit A, attached hereto and incorporated herein (the "Easement Area");

WHEREAS, the City desires to obtain a drainage easement over the Easement Area for the purpose of providing and ensuring the maintenance of a stormwater conveyance and/or drainage facility;

WHEREAS, Grantor acknowledges that it has the obligation to maintain the drainage facilities within the Easement Area in accordance with this Agreement; and

WHEREAS, Grantor represents that it has good and lawful right and authority to grant the easement described herein and warrants title to the property.

NOW, THEREFORE, in consideration of the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. Grant of Easement. Grantor hereby grants and conveys to the City, its successors and assigns, the right and privilege to ensure on behalf of the public that the facility remains in Good Working Order. For the purposes of this agreement, "Good working Order" means the drainage system is operating as designed and constructed in accordance with the as-built construction drawings on file with the City including, but not limited to, ensuring that the structures and Easement Area land surface are free of debris, impoundments, and/or alterations to the drainage flow.

This easement is perpetual and shall run with the land unless released in writing by the City. This easement is binding upon and shall inure to the benefit of the heirs, executors, administrators, successors, and assigns of the parties hereto.

Such grant includes all rights and privileges necessary or convenient for the full enjoyment and use thereof for the above-mentioned purposes including, but not limited to, the right of ingress and egress over Grantor's adjoining property in order to exercise the explicit right to remedy any drainage issues on the property.

2. Restrictions and Modifications. Grantor shall not alter, construct, install, permit, or allow any structure, improvement, or development within the Easement Area that obstructs, impedes, or

interferes with the flow, function, or capacity of the drainage facilities. However, if approved in writing by the City, the Grantor may construct and/or install surface improvements to its property, including paved driveways, parking and/or walkways, landscaping, utilities and/or similar improvements, which improvements do not then or later interfere with the aforementioned purposes of the Easement Area.

Should any approved or unapproved improvement subsequently interfere with the function or capacity of the drainage facilities, as determined by the City in its reasonable discretion, the City may require Grantor, at Grantor's expense, to promptly remove or modify such improvement as necessary to restore proper function, and if Grantor fails to do so after written notice and a reasonable opportunity to cure (not less than fifteen (15) days), the City may remove or modify such improvement and recover its reasonable costs from Grantor as provided in Section 3.

3. Maintenance. Grantor shall maintain the drainage facilities contained within the Easement Area in Good Working Order. If the Grantor fails to perform required maintenance in accordance with this Agreement following written notice from the City specifying the deficiencies and providing a reasonable opportunity to cure of not less than thirty (30) days, the City shall have the right, but not the obligation, to enter the Easement Area to perform or contract for such maintenance. Grantor agrees to reimburse the City for all reasonable costs incurred, including, without limitation, labor, materials, administration, reasonable attorneys' fees, and other expenses incurred in connection with the enforcement of this Agreement, within thirty (30) days of written demand, together with interest at the highest rate allowed by law from the date of expenditure until paid

4. Shared Use. The Grantor reserves the right to make any use of the Easement Area which is not inconsistent with the rights herein conveyed to the City, and which does not interfere with the aforementioned purposes of the Easement Area.

5. No Third-Party Beneficiaries. It is understood and agreed that the enforcement and conditions of this agreement, and all rights contained herein, shall be strictly reserved to the Grantor and the City. Nothing contained in this agreement shall give any claim or right whatsoever by any third person or entity. It is the express intention of the Grantor and the City that any such person or entity, other than the Grantor or the City, that receives a service or benefit under this agreement shall be deemed an incidental third-party beneficiary only.

6. Indemnification. Grantor shall indemnify, defend, and hold harmless the City, its elected officials, officers, employees, and agents from and against any and all claims, demands, damages, liabilities, losses, costs, and expenses (including reasonable attorney fees) arising out of or related to (i) Grantor's failure to maintain the drainage facilities in Good Working Order, (ii) any obstruction, alteration, or improvement placed within the Easement Area by or at the direction of Grantor, or (iii) Grantor's use of the Easement Area, except to the extent caused by the sole negligence or willful misconduct of the City.

7. Recording. Grantor agrees that it shall record this agreement in the real property records of Laramie County, Wyoming, and shall notify any successor in interest to all or any part of the property subject to this easement of the obligations herein. Failure to provide such notice shall not relieve any successor of its obligations under this agreement.

8. Governmental Immunity. The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law, and nothing in this Agreement shall be construed to create any waiver of such immunity beyond that specifically and expressly stated herein.

(signature page follows)

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals this _____ day of _____, 20____.

GRANTOR:
CBH PROPERTIES CHEYENNE, LLC

By: [Signature]
Tim Geiger, Vice President

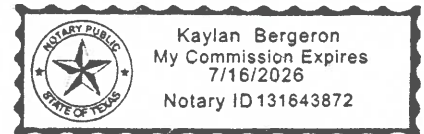
STATE OF TEXAS)
) ss.
COUNTY OF HARRIS)

Subscribed and sworn to before me this 4 day of March, 2026, by Tim Geiger, as Vice President of CBH PROPERTIES CHEYENNE, LLC, as the act and deed of such entity.

Witness my hand and official seal.

[Signature: Kaylan Bergeron]
Notary Public

My commission expires: 7/16/2026



CITY OF CHEYENNE:

By: _____
Patrick J. Collins, Mayor

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

Subscribed and sworn to before me this _____ day of _____, 20____, by Patrick J. Collins, Mayor of the City of Cheyenne, Wyoming.

Witness my hand and official seal.

Notary Public

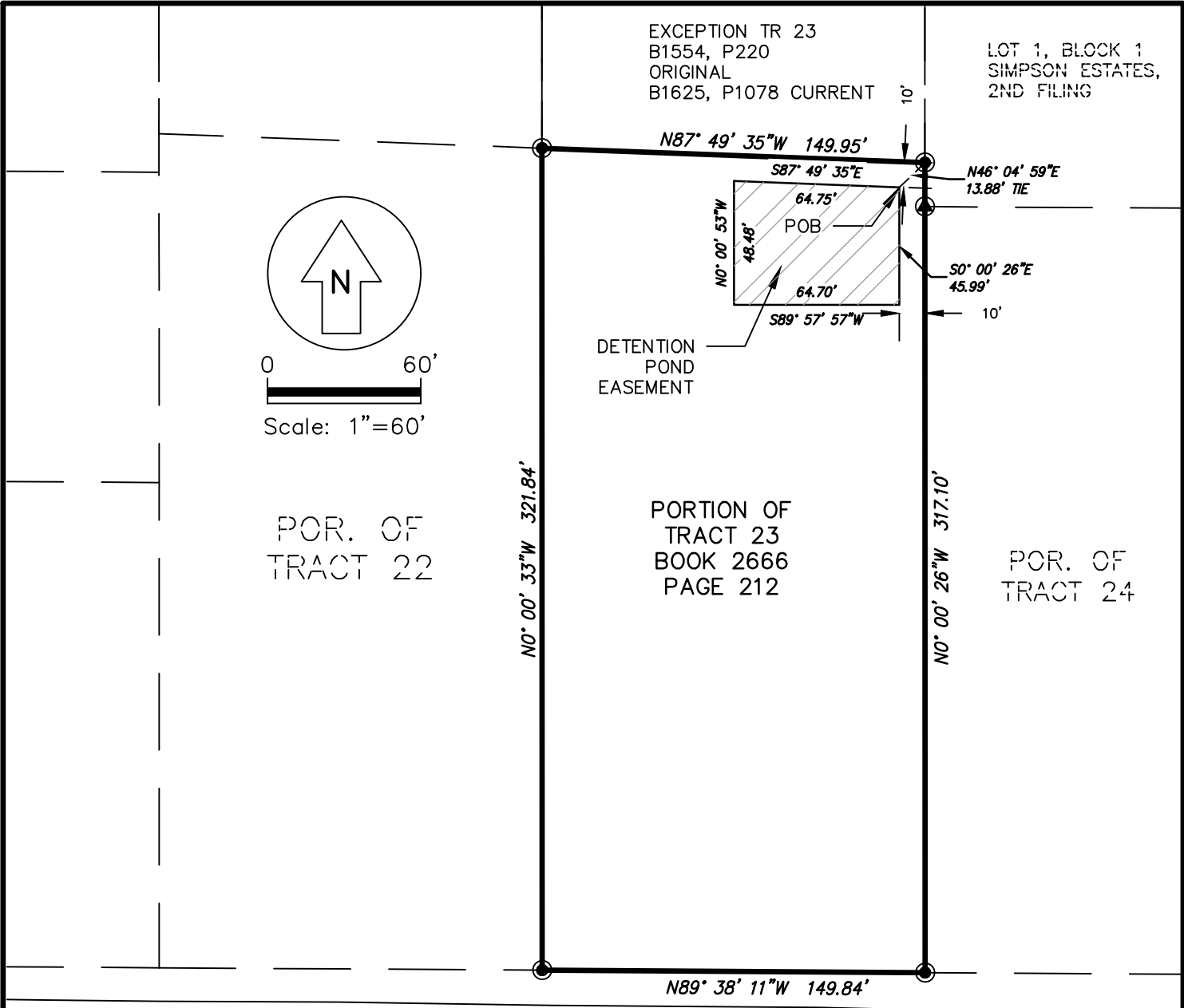
My commission expires: _____

Exhibit A

Easement Area description and depiction

{see attached}

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**EAST PERSHING BOULEVARD (R/W VARIES)
PUBLIC ROAD**

EASEMENT DESCRIPTION

An easement for drainage purposes across a portion of Tract 23, Sunnyside Addition, 2nd Filing, City of Cheyenne, Laramie County, Wyoming, as described in Book 2666, Page 212. Said easement being described as follows:

Beginning at a point from which the Northeast corner of said Book 2666, Page 212 bears N46° 04' 59"E, a distance of 13.88 feet; thence S00° 00' 26"E, a distance of 45.99 feet; thence S89° 57' 57"W, a distance of 64.70 feet; thence N00° 00' 53"W, a distance of 48.48 feet; thence S87° 49' 35"E, a distance of 64.75 feet to the Point of Beginning.

LEGEND

- FOUND ALUMINUM CAP STAMPED PLS 5910
- FOUND ALUMINUM CAP STAMPED PLS 2500
- EXISTING BITUMINOUS SURFACE
- EXISTING CONCRETE SURFACE

BASIS OF BEARINGS:
WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



**Exhibit "A" to Drainage
Easement Agreement**

SITUATED IN A PORTION OF
TRACT 23, SUNNYSIDE ADDITION,
2ND FILING,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING.
Date prepared: 1-29-25



STEIL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
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756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 388-9789
www.SteilSurvey.com • info@SteilSurvey.com

Mortgagee's Consent and Subordination

TRUIST BANK, a North Carolina banking corporation, ("Mortgagee") is the mortgagee under that certain MORTGAGE granted and conveyed by CBH Properties Cheyenne, LLC, a Wyoming limited liability company, recorded on July 31, 2025, in Book 2931 Page 2697 at Reception #897373 with Clerk of Laramie County, Wyoming (the "Mortgage") concerning the real property described there in. Mortgagee does hereby agree and declare that such mortgage, and all extensions and renewals thereof, shall be and hereby is made subordinate, subject and inferior to the drainage easement agreement granted to the City of Cheyenne to which this consent and subordination is attached.

Mortgagee further consents to the recording of such drainage easement agreement along with this Consent and Subordination.

IN WITNESS WHEREOF, the Mortgagee has executed these presents as of February 6, 2026.

TRUIST BANK

By: Nathan Villarreal

Name: Nathan Villarreal

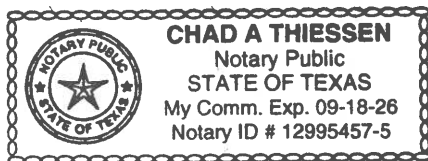
Its: Senior Vice President

STATE OF TEXAS §

§

COUNTY OF HARRIS §

This instrument was acknowledged before me on February 6, 2026, by Nathan Villarreal, the Officer of Truist Bank, North Carolina banking corporation, on behalf of said banking corporation.



Chad A. Thiesen
Notary Public, State of Texas

**Mortgagee's Consent and Subordination
Second Lien**

CBH Properties Investments II, LLC, a Texas series limited liability company, ("Mortgagee") is the mortgagee under that certain MORTGAGE, ASSIGNMENT OF RETNS AND SECURITY AGREEMENT SECOND LIEN granted and conveyed by CBH Properties Cheyenne, LLC, a Wyoming limited liability company, recorded on July 31, 2025, in Book 2931 Page 2726 at Reception #897375 with Clerk of Laramie County, Wyoming (the "Mortgage") concerning the real property described there in. Mortgagee does hereby agree and declare that such mortgage, and all extensions and renewals thereof, shall be and hereby is made subordinate, subject and inferior to the drainage easement granted to the City of Cheyenne to which this consent and subordination is attached.

Mortgagee further consents to the recording of such drainage easement agreement along with this Consent and Subordination.

IN WITNESS WHEREOF, the Mortgagee has executed these presents as of March 4, 2026.

CBH PROPERTIES INVESTMENTS II, LLC

By: 

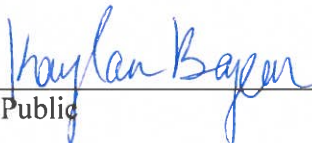
Name: Dana Mason

Its: Vice President

STATE OF TEXAS)
) ss.
COUNTY OF HARRIS)

This instrument was acknowledged before me on March 4, 2026, by Dana Mason, the Vice President of CBH Properties Investments II, LLC, a Texas series limited liability company, on behalf of said company.

Witness my hand and official seal.


Notary Public

My commission expires: 7/16/2026

